

8.	30-2026-01549613 Hernandez vs. Bellflower Skilled, LLC	As a preliminary matter, the Court notes that Plaintiff was ordered to file amended motions no later than June 24, 2026. ROA 199. The Court's order warned that the Court would interpret failure to file amended motions as a withdrawal. <i>Id.</i> Here, Plaintiff failed to file amended motions for Register of Actions ("ROA") Nos. 68, 69, and 163. These motions are therefore considered WITHDRAWN. Additionally, Plaintiff's Amended Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set One, served upon Defendant Bellflower Skilled, LLC ("Bellflower"), was not timely filed as previously ordered. <i>See</i> ROA 223. Therefore, ROA 142 is also considered WITHDRAWN. Pursuant to the foregoing, before the Court are the following three (3) motions brought by Plaintiff Maria Elena Hernandez ("Plaintiff"): one MF-SROG, Set One, brought against Defendant Sun Mar Management Services ("Sun Mar"); and two (2) Motions to Compel Further Responses to Requests for Production ("MF-PROD"), Set One, one against Defendant Sun Meridian Management Services ("Meridian") and one against Sun Mar. ROAs 215, 217, 219. The underlying controversy involves claims of elder abuse and negligence. ROA 2. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.020, 2030.250, and 2030.290, compelling Sun Mar to provide further, verified, code compliant responses to Plaintiff's Special Interrogatories ("SROG"), Set One, Nos. 3-5, within ten (10) days of receiving notice of the Court's order. ROA 215, p.2. Plaintiff also seeks monetary discovery sanctions upon Sun Mar in the amount of \$2,500.00, payable to Garcia and Coman, for the costs associated with bringing Plaintiff's MF-SROG, Set One, against Sun Mar. <i>Id.</i> Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.020, 2031.280, and 2033.290, compelling Meridian to provide further, verified, code compliant responses to Plaintiff's Request for Production ("PROD"), Set One, No.
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	114 within ten (10) days of receipt of notice of the Court’s order. ROA 219, pp. 2, 5-6. Additionally, Plaintiff seeks monetary discovery sanctions upon Meridian in the amount of \$2,500.00, for the costs associated with bringing their MF-PROD, Set One, against Meridian. ROA 219, p.2. Lastly, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.020, 2031.280, and 2033.290, compelling Sun Mar to provide further, verified, code compliant responses to Plaintiff’s Request for Production (“PROD”), Set One, Nos. 2-3, within ten (10) days of receipt of notice of the Court’s order. ROA 217, pp. 2, 5-6. Additionally, Plaintiff seeks monetary discovery sanctions upon Sun Mar in the amount of \$2,500.00, for the costs associated with bringing their MF-PROD, Set One against Sun Mar. ROA 217, p.2. In total, Plaintiff seeks \$7,500.00 in monetary discovery sanctions. Defendant does not seek sanctions and requests that the Court deny Plaintiff’s motions in their entirety. <i>See</i> ROAs 233, 231, 229, 227, 225. I. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); <i>see</i> Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties’ obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2030.090(a), 2030.300(b)(1), 2031.060(a),
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	2031.310(b)(2). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 (“[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion.”), 2030.300(b), 2031.310(b)(2); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). Effective January 1, 2026, Section 2016.040 demands that a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either <i>in person</i>, <i>telephonically</i>, or by <i>videoconference</i>; e-mail alone will <i>not</i> suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). The Court finds that Plaintiff’s Declarations in support of the herein motions do not state facts sufficient to satisfy the statutory requirement that the moving party attempt to meet and confer regarding the retention of a certified shorthand reporter. <i>See</i> ROAs 215, 217, 219, Decl. of Garcia. Consequently, Plaintiff’s remaining motions are DENIED on procedural grounds. II. Sanctions re: Motions to Compel Further Responses to Discovery Requests The Civil Discovery Act provides that courts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one
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		subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d). “Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds no substantial justification for Plaintiff’s failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, while the Civil Discovery Act authorizes sanctions for a party's failure to make a good-faith effort to meet and confer in person, by telephone, or by videoconference before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Additionally, Defendants do not seek sanctions and have therefore not placed Plaintiff on notice of the potential imposition of sanctions. Thus, the Court finds that sanctions against Plaintiff are not proper. Accordingly, the Court DENIES Plaintiff’s motions (ROA 215, 217, 219). The Court orders the Clerk to give notice.
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